



Republic Act 10173

PRESENTED BY SOLIS, SUAYBAGUIO
AND TIMBAL



REPUBLIC ACT 10173

Data Privacy Act of 2012

The Data Privacy Act of 2012 is a **crucial law** in the Philippines designed to safeguard personal information. It aims to protect the privacy rights of individuals while promoting responsible data handling practices among government and private entities, ensuring a secure environment for all citizens.

Chapter 1: General Provisions

Section 1: Title of the Act

"Data Privacy Act of 2012."

Section 2: Declaration of Policy

Emphasizes the importance of privacy rights and responsible data processing.

Section 3: Definition of Terms

Key terms used in the law, such as personal information, processing, data subject, data controller, and data processor.

Section 4: Scope of the Act

Applies to all personal data processed in the Philippines, regardless of where the data processor is located.

Section 5: Applicability of the Act

Covers government agencies and private entities that process personal data.



Chapter 2: The National Privacy Commission



Section 6: Establishment of the NPC

The law creates the National Privacy Commission as the primary authority on data privacy.

Section 7: Functions of the NPC

Includes monitoring, implementing policies, and enforcing compliance.

Section 8: Powers of the NPC

Includes conducting investigations, issuing cease and desist orders, and imposing penalties.

Chapter 3: Personal Data Processing

Section 9: Principles of Processing

Data must be processed fairly, lawfully, and transparently.

Section 10: Consent

Processing personal data generally requires the consent of the data subject.

Section 11: Data Processing

Guidelines on how personal data should be processed.

Section 12: Data Subject Rights

Includes rights to access, correction, and object to processing.

Section 13: Data Breach Notification

Requires notification of data breaches to the NPC and affected data subjects.

Section 14: Data Protection Officer

Organizations must appoint a DPO to oversee data privacy compliance.

